

Does accessibility legislation actually work in practice?

I.) Introduction

Digital technology has become a core to modern life, shaping access to work, education, healthcare, government services, amongst more. During the COVID-19 pandemic, internet usage increased significantly due to the need for remote work and communication. Despite the growing reliance on online resources, most websites remain inaccessible to many users including those disabled even after decades of digital accessibility legislation. Accessibility frameworks like the Americans with Disabilities Act (ADA), Section 508, and the Web Content Accessibility Guidelines (WCAG), should ensure equal access and usability by all people no matter their disabilities. Despite the existence of multiple accessibility laws, empirical data shows that most of the internet is not accessible to most digital users.

Digital accessibility is not only a technical requirement, it is an issue with civil rights and equal access to an infinite amount of resources, some of which vital for survival. 2020 and the beginning of isolation marked a turning point in technology and the way that the majority of civilians utilize its features. There has still been a growing reliance on mobile applications and websites in order to carry out vital daily functioning, and because of this there should be an increase on how apps and websites are designed so they do not include barriers for participation in society.

Although accessibility policies such as the ADA, Section 508, and the WCAG set a clear framework, they still are largely ineffective in practice because of weak enforcement, inconsistent adoption across the industry, and insufficient education amongst developers. This leads to widespread noncompliance amongst developers and persistent barriers for disabled users, while producing an inconsistent experience for nondisabled users.

II.) Background: Accessibility Legislation Requirements

The Americans with Disabilities Act, enacted in 1990, is a US civil rights law which ensures individuals with disabilities are not discriminated against in public spaces, and this includes digital spaces (US Department of Justice Civil Rights Division, 2025). The US Department of Justice enforces the ADA and often references the WCAG 2.1 Level AA as the generalized standard for accessibility online. Although the ADA applies to many public facing websites, inconsistent enforcement and limited public awareness has limited compliance. The ADA also introduces the idea of ‘undue burden’ exemption, which allows businesses to bypass accessibility requirements when compliance is proven to be ‘too difficult’ or ‘expensive’, which is often criticized because it is often seen as overly flexible.

Section 508 of the Rehabilitation Act mandates federal agencies to develop and maintain accessible technology. Section 508 was updated in 2018 to align with the WCAG 2.0, but still is often viewed as behind current standards and does not apply at all to the private sector which creates inconsistencies from site to site. The groundwork for almost all accessibility laws comes from the Web Content Accessibility Guidelines (WCAG), which is an international standardized

outlining four key principles the state digital content must be: perceivable, operable, understandable, and robust. The WCAG also provides concrete examples like alternative text for images, proper color contrasts, captions for multimedia, etc, that create an accessible space digitally. Globally, regions like the European Union have created similar standards but with even stricter regulation, or like Norway which show limited real world efficacy when enforcement is weak or inconsistent. Both of these frameworks establish a clear idea for accessible digital environments, but their effectiveness is heavily dependent on how reliably they are implemented, monitored, and enforced.

III.) Extent of the Issue

Regardless of extensive legislation and technical guidance solely focused on accessibility in the online world, empirical data shows that the vast majority of digital platforms are still inaccessible to users with disabilities. Large-scale evaluations show systemic failure rather than the occasional oversight of an issue. A 2025 analysis of the top one million websites found that only 5.2% fully complied with the rigorous standards of WCAG (Gibson,2025). This means that over 94% of these top used websites present barriers to disabled users (Gibson, 2025). The 2024 Accessibility Checker report, examines more than 63,000 websites, and concludes that 88% of websites fail accessibility checks, with the average website only achieving 60% compliance even when automated tools are offered. This suggests that many organizations prioritize superficial compliance, by addressing only the most basic issues, while ignoring deeper structural barriers that create positive user experiences. International research supports this pattern. A longitudinal study of Norwegian municipal websites found only gradual, limited improvement in compliance over time, showing that even strong legislation has a small impact without strong reinforcement

(Inal & Torklesby, 2025). Overall, these studies show that accessibility noncompliance is an internet structural problem. The data shows that legislation alone has not translated into broad adoption of accessible design, and most digital systems are unstable for individuals who rely on assistive technology.

IV. Counterarguments

Some state that the small increase in compliance is enough to argue that laws do help with online accessibility measures; for example, in Norway authors Inal & Torkildsby did see minor improvements in accessibility measures after the passing of the Norwegian Anti Discrimination and Accessibility Act (ADA Act of 2013), which was the law that required all public websites to meet accessibility standards. That being said, the issue of legislation is the rate of acceptance amongst the majority of the population, which was only a marginal improvement of only a few percent over several years (Inal & Torkildsby, 2025), and it is mainly due to the fact that laws alone are weak motivators to act as a catalyst for any real and long term change. Another argument is that the WCAG is a detailed and widely adopted document to ensure accessibility which is only partially true because the WCAG does not address issues between people and their technology, third party systems, which are specifically popular to create a more accessible experience online, and organizational behavior when prioritizing accessibility online during the creation of a website or application. A large argument especially from businesses both large and small is that compliance with these accessibility measures is expensive during the creation of sites. However, business performance actually increases with better accessibility due to three congruent factors from business to business which is that the site has a better UX design, a high customer satisfaction, and overall a better retention. Lastly,

automated testing is a very common practice with large companies most likely because of the popularization of automation because it is cheap and easier to automate than to use real human interaction. Automated testing can not replicate real user interaction, and studies have shown that these tools detect less than one third of accessibility issues that only human identifiers can identify.

V. What is Working?

Even with so much evidence against digital accessibility legislation, there are a few positive adjustments that can be seen currently with accessibility online. In both 2024 and most recently in 2026 the Department of Justice (DOJ) updated the ADA rules, setting a baseline of all websites and mobile apps used and produced by local and state governments to be compliant with WCAG 2.1 Level AA, and its goal is focused past Title II entities hopefully changing non government owned websites (TransPerfect). Globally, in the European Union there is a strict enforcement of the European Accessibility Act (EAA), which mandated all apps and websites be accessible to individuals with a disability without an add on by June of 2025 (European Commission, n.d.). On top of this accessibility online has been a large topic of discussion throughout the technology world, and because of this overall awareness especially amongst developers has increased leading to a larger amount of accessible sites.

One of the strongest drivers for accessibility change and compliance has been public legal action. High profile lawsuits have pressured companies to adopt more accessible practices and have highlighted the widespread nature of digital exclusion in current publications.

Because companies control most of the digital infrastructure used by the public, meaningful accessibility improvements depend on the willingness to adopt and update accessible design practice. As discussed above Federal agencies are using Section 508 in order to create accessible platforms for users, but most importantly setting a visible example of what other developers should be striving for in terms of accessibility. Universities globally have also been some of the first widespread organizations to adopt the principles shown in the WCAG. For example, universities like the University of Illinois and MIT have adopted university-wide accessibility standards which align with WCAG 2.1, showing how organizational policies can improve widespread compliance. Werren et al. (2025) also shows how Swiss public administration implemented structural accessibility in early stages to benefit visually impaired users (Werren, 2025).

VI. Solutions: What Would be Effective?

There has been a lot of discussion of what has not worked when it comes to legislation and accessibility. There is not a direct answer to accessibility because of the individual needs of each user, so legislation needs to constantly be updated and individual companies and their products need to be screened often in order to maintain an accessible online world. First, I would propose accessibility audits either quarterly or annually, especially for large companies or government agencies, and any site that is needed to complete a lifestyle/ health activities. These sites are most important to maintain due to the traffic and importance of these sites. Penalties for noncompliance also need to be larger, just like any other noncompliance with accessibility laws. Not having an accessible website can be just as harmful as not having a ramp into a building, and because of this the fines and consequences need to reflect that. On top of the fine, if a company

is non-compliant in order to take the proper steps to a better website after the infraction with set deadlines for the steps needed to be taken so officials can continue to monitor and ensure action is being taken.

A website or app can only be as good as the developer behind it, and because of this education on accessibility needs to be congruent and mandated throughout the education and hiring process of developers. If these practices are taught from the beginning of developers careers, accessible decisions will be second nature. Gibson says in **this article** that the lack of training with accessible design is the biggest obstacle with accessibility online, education is the first step that will be able to ‘solve’ this issue. Disabled users also need to be a part of client testing, allowing for a broader and more diverse group of people to voice their ideas and concerns while a product is still in development, which reflects the group of final end users more. Disabilities including but not limited to Screen Reader Users, Mobility- impaired users, and Cognitive Disability communities should be a part of the design and testing process in order to voice their needs. Finally, the WCAG needs to be legally binding instead of just a suggestion. There should be direct repercussions including the taking down of a site if the infraction is large enough or if the singular site has compiled enough infractions.

VII.) Conclusion

Laws create a foundation of what is acceptable and unacceptable in our daily lives. Accessibility laws are created and enforced throughout our physical lives, handicap parking spaces, ramps, and visually impaired aids all are examples of how the physical world creates small changes to give the opportunity for more people to live their normal life. Shouldn’t the online world have those same aids in order to give equal opportunity for more people? In order

for laws and regulations to hold up throughout time they need enforcement and accountability from both developers and companies in order to maintain a positive online-sphere. As public life relies increasingly online from education, health, and work practices, inaccessible platforms become a major civil rights crisis leaving millions of users struggling to use everyday technology. Policymakers need to strengthen enforcement of these online spaces, and developers need to start integrating these features earlier in the design process which makes the site more accessible overall. Lastly, companies need to treat online accessibility as a core requirement instead of an optional or bonus feature on their website. Not only will they increase the amount of users who can use their site, but they will also increase public perception and possibly boost the reputation of the company overall.

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